

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Senior District Judge Richard P. Matsch**

Date: December 13, 2007
Courtroom Deputy: J. Chris Smith
FTR Technician: Kathy Terasaki

Civil Action No. 05-cv-01917-RPM-MJW

ADEPT COMPUTER SOLUTIONS, INC., a California corporation,

Plaintiff,

Peter C. Forbes
Gary D. Aronson

v.

ZOLL DATA SYSTEMS, INC., a Delaware corporation,

Defendant.

Natalie M. Hanlon-Leh
James G. Sawtelle
Mary V. Sooter

COURTROOM MINUTES

Trial to Jury Day Nine

9:00 a.m. Jurors return and resume deliberations.

4:26 p.m. Court in session.

Plaintiff's representative Scott Pickett and defendant's representative David Brown present.

Court states it has not received any communications from the jury and it intends to recess deliberations for the day.

Jurors present.

Court instructs jurors.

Jurors excused until 9:00 a.m. December 14, 2007.

4:32 p.m. Court in recess.

Trial continued. Total time: 6min.